

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 1, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against LOCAL VERTICALS, S.L. (hereinafter, the respondent), through the Agreement transcribed below:

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Procedure No: EXP202400410 (PS/00040/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

FACTS

FIRST: On September 26, 2023, Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the entity, LOCAL VERTICALS, S.L., with CIF: B02789808, owner of the website, ***URL.1 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the Protection of Natural Persons with regard to the Processing of Personal Data and on the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and against Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

In her complaint, she states that, after the long time elapsed since her first complaint to the AEPD, the website in question continues to store cookies without the user's consent. There is also no legal notice with the information that should appear in it.

SECOND: On January 10, 2024, the Inspection Subdirectorate of the Spanish Agency for Data Protection carried out the following diligence regarding the possibility of obtaining personal data on the website in question and its "Cookie Policy":

a) Regarding the use of cookies before the user gives their consent:

Upon entering the website ***URL.1 for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that the following cookies are used:

- Advertising or targeting cookies: Cookies specifically designed to gather information about the pages viewed to send advertising based on topics relevant to the user:

Cookies

Domain

Description

YSC

***DOMAIN.1

YouTube sets this cookie to track visits to embedded videos on the website.

VISITOR_INFO1_LIVE

***DOMAIN.1

YouTube sets this cookie to track user preferences regarding embedded YouTube videos on the website; it can also determine whether the website visitor is using the new or old version of the YouTube interface.

b) Regarding the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the website, a cookie information banner appears with the following message:

Welcome to Motorpasión!

Please accept the use of cookies to have the best experience on our site.

With your consent, we and our 795 partners use cookies or similar technologies to store, access, and process personal data, such as your visits to this webpage, IP addresses, and cookie identifiers. Some partners do not ask for your consent to process your data and rely on their legitimate commercial interest. You can withdraw your consent or object to the processing of data based on legitimate interest at any time by clicking on "Get more information" or on the privacy policy of this webpage.

We and our partners carry out the following data processing: Storing information on a device and/or accessing it, precise geographical location data and identification through device analysis, personalized advertising and content, measurement of advertising and content, audience research, and service development.

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<>

<>

If you choose to accept all cookies by clicking on the <> option, it is verified that the website continues to use the cookies detected at the beginning of the visit, before granting consent, along with numerous third-party cookies.

If you click on the <> option, with the aim of accessing the cookie control panel, it is observed that the website starts to use three new third-party cookies (from "youtube.com" and "doubleclick.net"), in addition to those already mentioned, without any prior consent from the user:

- VISITOR_PRIVACY_METADATA

***DOMAIN.1/

- CONSENT

PENDING+089

***DOMAIN.1/

- __Secure-YEC

***DOMAIN.1/

- IDE

***DOMAIN.2/

Subsequently, the website displays a cookie control panel, where the cookie groups are not pre-checked in any of the presented options ("accept" or "reject").

If you wish to reject all cookies, by clicking on the <> option, it is verified that the website continues to use the third-party cookies (from "youtube.com" and "doubleclick.net") detected earlier.

d).- Regarding the information provided in the "Cookie Policy":

There is no type of information about cookies on the website. There is also no link or reference to the "Cookie Policy" or an adjacent page that informs about the use of cookies.

e).- Regarding the possibility of modifying the consent granted for cookies at any time during web browsing.

If the user has granted initial consent for the website to use non-technical or necessary cookies and wishes, at a certain moment, to modify that consent, there is no possibility to access the cookie control panel, which could be accessed from the information banner that appeared on the initial page.

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the competencies attributed to it by other laws."

II

a).- Regarding the installation of cookies on the terminal equipment prior to the user's consent: Article 22.2 of the LSSI establishes that users must be provided with clear and complete information about the use of data storage and retrieval devices and, in particular, about the purposes of data processing.

This information must be provided in accordance with the provisions of the GDPR.

Therefore, when the use of a cookie involves processing that enables the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations.

However, it is necessary to point out that those cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user would be exempt from compliance with the obligations established in Article 22.2 of the LSSI.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the exempted cookies would be user input cookies (those used to fill out forms or as management of a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface personalization cookies; and some plug-in cookies for sharing social content.

These cookies would be excluded from the scope of application of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. Conversely, it will be necessary to inform and obtain the user's prior consent before using any other type of cookies, whether first-party or third-party, session or persistent.

In this case, upon checking the website, it was verified that upon entering it for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on it, the following cookies that are not technical or necessary were used:

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YSCMás

***DOMAIN.1

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VISITOR_INFO1_LIVE

***DOMAIN.1

Furthermore, when the user accesses the control panel to manage cookies, it has been verified that, before being able to manage them, new third-party cookies are installed without the user's consent:

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VISITOR_PRIVACY_METADATA

***DOMAIN.1/

-

CONSENT

PENDING+089

***DOMAIN.1/

-

__Secure-YEC

***DOMAIN.1/

-

IDE

***DOMAIN.2/

b).- Regarding the existing cookie information banner on the first layer (main page):

The first-layer cookie banner must include information regarding the identification of the publisher responsible for the website, in case their identifying data is not included in other sections of the page or their identity cannot be clearly inferred from the site itself. It must also include a generic identification of the purposes of the cookies that will be used and whether they are first-party or also third-party cookies, without the need to identify them in this first layer.

Additionally, it must include generic information about the type of data that will be collected and used in case user profiles are created and must include information on how the user can accept, configure, and reject the use of cookies, with the warning, if applicable, that if a certain action is taken, it will be understood that the user accepts the use of cookies.

Apart from the generic information about cookies, this banner must have a clearly visible link directed to a second layer of information about the use of cookies. This same link may be used to lead the user to the cookie configuration panel, provided that access to the configuration panel is direct, meaning that the user does not have to navigate within the second layer to locate it.

In the case at hand, it is noted that the existing cookie information banner on the first layer of the relevant websites contains the message:

"Please accept the use of cookies to have the best experience on our site. With your consent, we and our 795 partners use cookies or similar technologies to store, access, and process personal data, such as your visits to this webpage, IP addresses, and cookie identifiers. Some partners do not ask for your consent to process your data and rely on their legitimate commercial interest. You can withdraw your consent or object to the processing of data based on legitimate interest at any time by clicking on 'Get more information' or in the privacy policy of this webpage.

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We and our partners carry out the following data processing:

Store information on a device and/or access it, precise geographic location data and identification through device analysis, personalized advertising and content, measurement of advertising and content, audience research, and service development.

Identify the purposes for which cookies will be used and whether they are first-party or third-party; inform about the type of data that will be collected and include information on how the user can accept, configure, and reject the use of cookies.

c).- Regarding consent for the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it will be necessary to obtain the user's express consent. This consent can be obtained by clicking on "accept" or inferring it from an unequivocal action taken by the user that indicates that consent has been unequivocally given. Therefore, mere inactivity of the user, scrolling, or browsing the website will not be considered a clear affirmative action in any circumstance and will not imply the granting of consent by itself. Similarly, access to the second layer if the information is presented in layers, as well as the necessary navigation for the user to manage their preferences regarding cookies in the control panel, will also not be considered an active behavior from which acceptance of cookies can be derived.

The existence of "Cookie Walls" is also not permitted, that is, pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without offering the user any alternative that allows them to freely manage their preferences regarding the use of cookies.

If the option is to go to a second layer or cookie control panel, the link must take the user directly to that configuration panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented, one to accept all cookies and another to reject them all. If the user saves their choice without selecting any cookies, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes favoring the acceptance of cookies are not admissible in any case.

If for the configuration of cookies, the website refers to the settings of the browser installed on the terminal equipment, this option could be considered complementary for obtaining consent, but not as the only mechanism. Therefore, if the publisher opts for this option, they must also offer, in any case, a mechanism that allows rejecting the use of cookies and/or doing so granularly.

On the other hand, the withdrawal of previously granted consent by the user must be possible at any time. To this end, the publisher must provide a mechanism that allows for easy withdrawal of consent at any time. It will be considered that this ease exists, for example, when the user

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provide easy and permanent access to the management or configuration system of cookies.

If the editor's cookie management or configuration system does not allow the user to prevent the use of third-party cookies once accepted, information will be provided about the tools offered by the browser and third parties, warning that if the user accepts third-party cookies and later wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose. In the case at hand, it was verified that there is no possibility for the user to withhold consent for the use of cookies that are not technical or necessary, since if all cookies are rejected in the control panel, the website continues to use the cookies detected at the beginning.

d).- Regarding the information provided in the second layer (cookie policy):

There must be a second layer on the website "Cookie Policy" where more detailed information is provided about the characteristics of the cookies, including information about the definition and generic function of cookies (what cookies are); about the type of cookies used and their purpose (what types of cookies are used on the website); the identification of who uses the cookies, that is, whether the information obtained by the cookies is processed only by the editor and/or also by third parties with identification of the latter; the retention period of the cookies on the terminal equipment; and if applicable, information about data transfers to third countries and the creation of profiles that involve automated decision-making.

In the case at hand, there is no type of information about cookies on the website. There is also no link or reference to the "Cookie Policy" or an adjacent page that informs about the use of cookies.

e).- Regarding the possibility of withdrawing consent for the use of cookies once granted.

Users must be able to withdraw the consent previously granted at any time. To this end, the editor must ensure that it provides information to users in its cookie policy on how they can withdraw consent. The user must be able to revoke consent easily. The system offered to withdraw consent must be as easy as the one used when consent was granted. It will be considered that this ease exists, for example, when the user has easy and permanent access to the management or configuration system of cookies.

In this case, if the user has initially granted consent for the website to use cookies that are not technical or necessary and wishes, at a certain moment, to modify that consent, there is no possibility to access the cookie control panel, which could be accessed from the information banner that appeared on the home page.

III

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Classification of the possible infringement committed

From the deficiencies detected regarding the cookie policy on the website ***URL.1, that is, the use of cookies that are not technical or necessary without the user's consent; the impossibility of rejecting them or managing them granularly, the impossibility of withdrawing consent once granted, and the absence of information about cookies (Cookie Policy), could imply on the part of the accused the commission of the infringement of Article 22.2 of the LSSI, as it establishes the following:

“Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, about the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of carrying out the transmission of a communication over an electronic communications network or, to the extent strictly necessary, for the provision of a service of the information society expressly requested by the recipient.”

IV.

Proposal and Graduation of the Sanction

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: “Using data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.”, and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI. The LSSI, in its Article 40, establishes the "graduation of the amount of sanctions," taking into account the following criteria:

- a) The existence of intent.
- b) The duration of time during which the infringement has been committed.
- c) The recurrence of committing infringements of the same nature, when declared by a firm resolution.
- d) The nature and amount of the damages caused.
- e) The benefits obtained from the infringement.
- f) The volume of billing affected by the committed infringement.
- g) Adherence to a code of conduct or a self-regulatory advertising system applicable to the committed infringement, which complies with the...

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provided in Article 18 or in the eighth final provision and that has been favorably reported by the competent body or bodies.

Based on the evidence obtained, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established in Article 40 of the LSSI:

- The existence of intent (paragraph a). This expression must be interpreted as equivalent to the degree of culpability according to the ruling of the National Court dated 12/11/07 in Case No. 351/2006, corresponding to the reported entity the determination of a system for obtaining informed consent that complies with the mandate of the LSSI.
- The period of time during which the infringement has been committed (paragraph b). In the context of

the sanctioning file opened against the entity for the same facts (PS/00086/2023), on 13/06/23 these deficiencies in the Cookie Policy of the website in question were already detected.

In accordance with these criteria, and without prejudice to what results from the instruction of this file, it is deemed appropriate to impose, for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on the website owned by it, an initial sanction of 10,000 euros (ten thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity LOCAL VERTICALS, S.L. with CIF: B02789808, owner of the website, ***URL.1 for the violation of Article 22.2 of the LSSI, classified as "minor" in Article 38.4 g) of the aforementioned regulation.

SECOND: TO APPOINT Mr. B.B.B. as Instructor, and Mr. C.C.C. as Secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction of this file, 10,000 euros (ten thousand euros).

FIFTH: TO NOTIFY this agreement to initiate the sanctioning file to the entity, LOCAL VERTICALS, with CIF: B02789808, granting it a hearing period.

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of ten working days for you to submit your allegations and present any evidence you deem appropriate. In your written allegations, you must provide your NIF (Tax Identification Number) and the file number indicated in the heading of this document.

If you do not submit allegations to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine, you may acknowledge your responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure, equivalent in this case to 2,000 euros. With the application of this reduction, the sanction would be set at 8,000 euros, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount, equivalent in this case to 2,000 euros. With the application of this reduction, the sanction would be set at 8,000 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 6,000 euros (Six thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

If you choose to proceed with the voluntary payment of any of the amounts indicated above (8,000 euros or 6,000 euros), you must make the payment by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A.,

indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering. You must also send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 43.2 of the LSSI.

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In compliance with Articles 14, 41, and 43 of the LPACAP, it is hereby notified that, henceforth, notifications sent to you will be carried out exclusively in electronic form, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you may identify an email address to this Agency to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí
Director of the Spanish Agency for Data Protection.

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SECOND: On March 19, 2024, the respondent has proceeded to pay the fine in the amount of 6000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202400410, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to LOCAL VERTICALS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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